

Mismatched

→ Which cases exist but have been mischaracterised or taken out of context

Mismatched	"Hackaton Doc"	"Source"
Anglia Television Ltd v Reed [1972] 1 QB 60 → opposite of the source was cited	Page 3: "B. The Measure of Damages 1. As to the measure of damages, Crestholm relies upon the decision of the Court of Appeal in Anglia Television Ltd v Reed [1972] 1 QB 60." → Crestholm cites Anglia Television Ltd v. Reed as evidence that, in the event of a breach of contract, damages for lost expectations must be awarded in the amount of all lost profits; with projected revenues (£47 million) serving as the primary basis for calculation, less saved costs and risk adjustments.	Page 3: "Anglia Television do not claim their profit. They cannot say what their profit would have been on this contract if Mr Reed had come here and performed it." → Anglia Television did not claim their profit. Instead of claim for loss of profits, they claim for the wasted expenditure.
D.C. Thomson & Co Ltd v Deakin [1952] Ch 646 (CA, 1952) → case exists, citation is real, but the stated rule is made up	Page 2: "The Court held in that case that, in instances of direct inducement, it is unnecessary for the defendant to have specific knowledge of the precise terms of the contract, provided that it was aware of the contract's existence." → Skeleton claims the Court of Appeal decided this point and ruled that knowledge of mere existence suffices: exact contract terms need not be known.	Page 68: "I do not find it necessary for present purposes to deal with these contentions." → Court expressly declined to decide this point. No such rule was laid down, the question was raised and left open.

Hadley v Baxendale (1854) 9 Ex 341 → rule correctly stated, but applied in reverse — case actually restricts lost-profit recovery, not confirms it	Page 3, "Crestholm's projected revenues of £47 million under the Supply Agreement plainly satisfy the first limb: the immediate and natural consequence of the procured termination is the loss of the income stream that the Supply Agreement was specifically designed to generate." → Crestholm argues that its lost profits/revenue automatically qualify as "natural" (first limb) damages, recoverable without needing to show that Veltros had any special knowledge of the consequences.	Page 7: "For such loss would neither have flowed naturally from the breach of this contract in the great multitude of such cases occurring under ordinary circumstances, nor were the special circumstances, which, perhaps, would have made it a reasonable and natural consequence of such breach of contract, communicated to or known by the defendants." → the court held that lost profits did not qualify as Limb 1 ("natural") damages on these facts, regardless of the general notice given — ordering a new trial because the jury wrongly took lost profits into account at all.